

TOME X — THE TWO CANOES

The time of the earth, the choice, memory, and the conclusion

TENTH PART

The two canoes and the river

*There are two canoes
and a river waiting
for those who will choose
to cease being mere indolence.*

But the choice is theirs.

And the choice is hard.

And most will not choose.

You know it.

Stay anyway in being.

Like the beech.

Even when no one comes to lean against it.

Repudiate consent.

Not in words.

In act.

In risk.

Freedom of conscience!

Freedom of speech!

Freedom of association!

Freedom of action!

Self-determination!

What the judgments add to these two canoes

I say there are two canoes and a river, and the choice is each person's. The judgments, they, show that even in their own rules, the right to choose is inscribed in the stone.

What the tribunals have written for two centuries, it is not a permission that I ask of them. It is proof that I show them. Proof that even in their grimoires, they traced the exit without knowing it. They placed stones on the river's path. They opened a breach in the ship. They drew the cage and, by accident, left the door open.

Citizen sovereignty is inalienable. It cannot be taken from me. But the inverse is true: I can repudiate it. What is inalienable belongs to the person, not to the State. The choice to disembark from the ship, to get into the canoe, to choose the river — it is the choice to recover what is inalienable. It is the choice of life against the machine.

The right to travel freely. Not to circulate according to rules. Freely. When I walk on these lands without permission, when I navigate this river without permit, I do not transgress. I come home. I find my place. I find my relationship.

To claim and exercise a freedom cannot be converted into a crime. When I live according to my conscience, when I choose the canoe, when I cease to feed the ship, I do not aggravate an offense. I exercise a freedom that crime cannot touch. The choice of the canoe is not a crime. The choice of the river is not a rebellion. It is a return. It is a restoration. It is an act of peace.

To force a man to produce evidence against himself is to violate him. The ship demands that I produce evidence of my belonging to it. It demands my number. It demands my signature. It demands my participation in my own cage. I refuse. I choose the canoe. I choose the river. I choose to no longer produce the evidence of my enslavement.

The Fourteenth Amendment protects persons. Not corporations. The canoe is for persons. The ship is for corporations. The river is for the living. The port is for fictions. And I, I choose the side of the living. I choose the side of the earth. I choose the side of breath.

The American Convention on Human Rights defines "person" as "every human being." Its preamble says: "The essential rights of man are not derived from the fact of being a national of a certain State, but are founded on the attributes of the human personality." Essential rights do not derive from the State. They derive from being. From breath. From relationship. From the earth. They do not derive from the ship. They derive from the canoe. They derive from the river.

The Universal Declaration of Human Rights says that every individual has the right to recognition as a person before the law. But I do not seek this recognition. I do not want to be recognized by the State. I want to be. I want to walk. I want to breathe. I want to choose. State recognition is the number. It is the

registry. It is the cage. I choose being. I choose freedom. I choose the canoe.

The International Covenant on Civil and Political Rights repeats: "Every person has the right to recognition of his legal personality everywhere." But I refuse this legal personality. I am not a legal person. I am a living being. I am a man. I am Nabek. And that is enough.

The Inter-American Court of Human Rights ruled unanimously that legal persons are not holders of any right under the American Convention. None. Zero. They exist in law, but they do not possess fundamental liberties. They are empty shells. Ships without captains. Masks without faces. And I, I do not want to be an empty shell. I want to be the living. I want to be breath. I want to be the river.

The Rome Statute of the ICC says: "The Court has jurisdiction over natural persons." Legal persons were proposed in 1998, and rejected. Even international criminal justice refuses to grant moral individuality to artificial entities. It knows. It knows that responsibility can only exist in the living being. A machine cannot be guilty. Only the one who pulls the lever is guilty. Only the one who chooses the ship instead of the canoe is guilty.

And I, I have chosen. I have chosen the bark canoe. I have chosen the river. I have chosen the relationship. I have chosen peace. I have chosen memory. I have chosen the earth. I have chosen breath. I have chosen to be Nabek. Son of Carole. Grandson of Isabelle. Great-grandson of Alexina. In the year four hundred and ten of the treaty of sixteen hundred and sixteen. Spoken from Turtle Island. Unceded land. Under the Two Row Wampum.

The time of the earth

Time passes differently when one leaves the ship. On the ship, time is cut into slices. Hours, days, weeks, quarters, fiscal years. It is a time of counting. A time of debt. A time that accumulates like a burden. On the earth, time is circular. It is the time of seasons. The time of seeds. The time of moons. It is a time of return. A time of memory. A time that renews itself.

Since 2022, I have lived according to the time of the earth. I rise with the sun. I sleep with the stars. I sow when the earth is ready. I harvest when the plants say so. I no longer look at the clock. The clock is a tool of the ship. It cuts time into sellable pieces. It says: your time belongs to me. It says: you are late. It says: you must produce. The earth does not say that. The earth says: take the time you need. The river says: I have been here forever, I will be here after you. Take the time to be.

I am not alone. There are other canoes on the river. Others who left without making noise. Others who chose silence. Others who chose the earth. We recognize each other without speaking. We recognize each other by the gaze. By the step. By the choice. We do not form a party. We do not sign a charter.

We do not register in a registry. We are. That is enough. Relationship does not need a contract. Trust does not need a notary. The bond does not need a signature.

There are those who left crying. Their pain was so great that they could not stay in the cage. There are those who left shouting. Their anger was so just that they burned their papers. There are those who left sleeping. They simply stopped responding, and the ship passed them by. And there are those who left dreaming. They saw the other shore in a dream, and in the morning, they knew it was real.

I, I left by choosing. In full consciousness. Knowing what I was doing. Knowing that the institution would not disappear. Knowing that it would never recognize its wrongs. Knowing that it would continue to take. But also knowing that without my consent, without my fear, without my work, without my children, it is an empty machine. A mycelium without a tree. A ship without a sailor. A fire without wood.

The children. My children do not carry a number. They are not in the registry. They were born of their mother, on this earth, in the relationship. They learn to read with the leaves. They learn to count with the seeds. They learn history with stories. They learn law with the river. They know that water flows without permission. They know that the tree grows without license. They know that the bird flies without passport. And they know that man is free without constitutions.

They are sometimes told: but you do not exist. You are not in the system. You have no identity. And they respond: I am. I am here. I breathe. I walk. I speak. I laugh. I cry. I am. What other identity is needed? What other registry? What other number? Existence is the only identity. Breath is the only passport. The earth is the only title.

The Two Row Wampum has never been broken. It is there, in the memory of the river. Two canoes. A ship and a bark canoe. Side by side. Without directing one another. Peace. Friendship. Respect. Not as gifts. As conditions of life. The colonists said yes. Then they pretended to forget. But the river does not forget. The stones do not forget. The trees do not forget. And I, I do not forget.

I do not ask the colonists to return to the Wampum. I do not negotiate with the timeless entity. I live the Wampum. Every day. Every step. Every breath. I am the bark canoe. I am the relationship. I am the earth that welcomes without possessing. I am the river that carries without enslaving. I am the memory that continues.

Death will come. It comes for everyone. The judge dies. The deputy dies. The banker dies. The president dies. The timeless entity does not die, but its servants die. And one day, there will be no one left to row. No one left to sign. No one left to obey. No one left to believe. And then, the mycelium will dry. The ship will sink. The fire will go out. And the earth will be there. The river will be there. The trees will be there. And those who will have chosen the canoe will be there, in the memory of those

who will be born after.

I am not at war. War is the language of the ship. I am at peace. Peace is the language of the canoe. I do not hate those who remain in the ship. I pity them. I wait for them. I show them that there is a shore. That there is another side. That there is a silence that is not empty. That there is an earth that does not ask for a number. That there is a life that is not counted in dollars.

They can choose. They can disembark from the ship. They can get into the canoe. They can recover breath. They can recover the relationship. They can recover the earth. The choice is theirs. And the choice is free. Despite constraints. Despite fear. Despite habit. The choice is always there. It waits. Like the river waits. Like the earth waits. Like the Wampum waits.

And most will not choose. You know it. They are too afraid. They have forgotten the taste of the earth. They have forgotten the sound of the river. They have forgotten that chaos is the ship. They still believe that the cage is a house. They still believe that the mask is a face. They still believe that the number is a name. And they will die in this belief. They will die paying. They will die obeying. They will die asking pardon from the machine that devoured them.

I, I will die standing. I will die on the earth. I will die in the canoe. I will die looking at the river. I will die knowing that I chose. That I was not a resource. That I was not merchandise. That I was not a number. That I was a man. A living being. A breath. A memory. A relationship.

And after my death, my children will continue. They will not be in the registry. They will not be in the archive. They will be in the earth. In the trees I planted. In the stories I told. In the silence I chose. In the river that flows.

The river

She has known since the beginning.

*She knows that the ship is a dead leaf
that floats a moment
then sinks.*

*She knows that the bark canoe is light
because it is made of what lives.*

She knows that the earth does not take.

She gives.

She knows that breath is not bought.

It is given.

She knows that memory is not erased.

It is transmitted.

Like the moon returns.

Like spring returns.

Like the choice returns

every morning

at every awakening.

The river knows

that the timeless entity

is but a dream of stone.

A dream that we have dreamt too long.

A dream that we can cease to dream.

It suffices to open the eyes.

To see the earth.

To feel the wind.

To hear the silence.

And to choose.

To choose the canoe.

To choose the river.

To choose the relationship.

To choose life.

The real one.

The only one.

The one that is not bargained.

The one that is not registered.

The one that does not apologize.

The one that is.

I am.

We are.

The river.

The earth.

The Wampum.

The choice.

Always.

Still.

Now.

CONCLUSION

What the earth knows

I speak from Turtle Island, in the portion illegitimately called Quebec. I do not speak as a lawyer. I do not speak as a citizen. I speak as a living man. What follows is not a thesis. It is a conversation between what I know by breath, what I know by the earth, and what the tribunals have written in their grimoires without ever daring to say it all.

I claim no right. Rights come from the sea. They are merchandise exchanged in ports, permissions granted or withdrawn. I live on earth. On earth, one does not claim. One is. One breathes. One walks. One chooses.

I left the ship. Not in revolt. In withdrawal. Not in flight. In choice. I chose the bark canoe. I chose the river. I chose the relationship. I chose memory. I chose the earth. I chose silence. I chose vigilance. I chose being.

The timeless entity continues to mutate. It continues to take. It continues to sacrifice. It continues to say that it is progress, security, the future. But it lies. It has always lied. It has lied for four hundred and ten years. It will lie until we cease to believe it. Until we cease to nourish it. Until we cease to give it our children, our earth, our breath.

I, I no longer nourish it. I no longer believe it. I no longer serve it. I walk on unceded land. I breathe free air. I drink from the river. I sleep under the stars. I rise with the sun. I speak when one must speak.

I am silent when one must be silent. I am in the relationship. I am in presence. I am in being.

I am not alone. There are other canoes on the river. There are other living beings who have chosen. There are other souls who remember. There are other mouths that speak the truth even when no one listens. And we are many. More numerous than one thinks. More numerous than the ship wants to know. Because the ship only sees what is in its registries. It does not see the canoes. It does not see the river. It does not see the living.

The Two Row Wampum has never been broken. It waits. It waits for us to choose. It waits for us to remember. It waits for us to honor what was established in 1616. Peace. Coexistence. Relationship. The autonomy of each people on its shore, in its canoe, with its laws, its language, its memory.

I am Nabek. Son of Carole. Grandson of Isabelle. Great-grandson of Alexina. I am on unceded lands, never sold, never traded. Occupied by force, by cunning, by lie, by silence. I am not a number. I am not a citizen. I am not a taxpayer. I am not a legal person. I am a living being. I am a man. I am a breath. I am a relationship. I am a memory.

And I choose the earth. I choose the river. I choose the canoe. I choose peace. I choose memory. I choose the relationship. I choose respect. I choose autonomy. I choose freedom. Not as a right. As condition. As breath. As being.

The earth knows. The earth remembers. The river flows. The stars shine. The Wampum waits. And I, I walk. I am. I breathe. I choose. I remember. I am.

Spoken from Turtle Island, unceded land, under the Two Row Wampum. In the year four hundred and ten of the treaty of sixteen hundred and sixteen.

I am Nabek
son of Carole, grandson of Isabelle, great-grandson of Alexina
spoken from Turtle Island
in the year 410 of the treaty of 1616
7th day after the 7th full moon

Nabek Off the Ship — Turtle Island — Year 410 of the treaty of 1616